

NON-DISCLOSURE AND CONFIDENTIALITY
AGREEMENT

This Nondisclosure and Confidentiality Agreement is made as of the _____ between:

by and

M/S ITIO INNOVEX PRIVATE LIMITED, having its office at C-32, SECTOR-14
KAUSHAMBI, GHAZIABAD, UP

201010 IN; hereinafter referred to as the "**First Party**,"

AND

Company Name -

Company Registered Number-

Owner Name -

Designation -

having Mail Address -

Contact Number -

Registered Address -

hereinafter referred to as the "**Second Party**,"

W I T N E S S E T H

Each of the parties to this agreement intends to convey certain Confidential Information concerning itself and its affairs for the purpose of performing voice and non-voice business support services by First Party to Second party. Disclosure of such confidential and proprietary information may take the form of oral or written communications, or display or distribution of tangible physical documentation.

NOW THEREFORE, in consideration of the foregoing premises and the mutual promises and covenants set forth below, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties, intending to be legally bound, agree as follows:

1. Disclosing Party/Receiving Party: To the extent that any party hereto discloses any Confidential Information (as defined below), such party shall be referred to herein as a "**Disclosing Party**." To the extent that any party hereto receives any Confidential Information, such party shall be referred to herein as a "**Receiving Party**."

2. Confidential Information: Each Receiving Party acknowledges the confidential and proprietary nature of the Confidential Information provided to it and agrees to hold and keep the same confidential as provided in this Agreement, and to take or abstain from taking certain other actions as described in this Agreement. The Receiving Party shall protect the Disclosing Party's Confidential Information using not less than the same standard of care with which it treats its own Confidential Information, but at all times shall use at least reasonable care.

3. Permissible Uses of Confidential Information: Each Receiving Party agrees that the Confidential Information provided to it will be used solely in connection with the Approved Purpose and that such Confidential Information (i) will not be disclosed to any person other than those directors, officers, employees or other representatives of such Receiving Party (collectively, the "**Representatives**") who are directly involved in the Approved Purpose and who shall be advised by the Receiving Party of this Agreement (ii) will not be used to breach or circumvent any legal obligation, including but not limited to those related to fair competition, with which each of the parties intend to fully comply. The Receiving Party agrees to be responsible for any breach of this Agreement by any of its Representatives.

4. Return of Confidential Information: Promptly upon request from the Disclosing Party, the Receiving Party shall deliver to the Disclosing Party (or destroy, at the option of the Receiving Party) all Confidential Information provided to it and any other tangible material containing, prepared on the basis of, or reflecting any such Confidential Information (whether prepared by the Disclosing Party, such Receiving Party or its Representatives or otherwise) in its possession and will not retain any copies, extracts or other reproductions, in whole or in part, of such Confidential Information; provided, however, that Confidential Information may be retained by the Receiving Party to the extent that retention of such Confidential Information is necessary to comply with the Receiving Party's internal document retention policies aimed at legal, corporate governance or regulatory compliance and the Receiving Party discloses to the Disclosing Party what Confidential Information is being retained and the basis for such retention and any such retained Confidential Information shall remain subject to

the disclosure and use restrictions set forth herein, notwithstanding any termination of this Agreement. In the event the Receiving Party elects to destroy, rather than return such Confidential Information, it shall upon request of the Disclosing Party confirm such destruction by a written certificate delivered to the Disclosing Party. The Receiving Party shall not be deemed to have retained or failed to return or destroy any Confidential Information if (i) Confidential Information received or stored in digital format is deleted from local hard drives, and (ii) so long as no attempt is made to recover such Confidential Information from servers or back-up sources, provided that any such retained Confidential Information shall remain subject to the disclosure and use restrictions set forth herein, notwithstanding any termination of this Agreement.

5. Disclosure Exceptions: The obligations of the Receiving Party and its Representatives under this Agreement shall not apply to disclosure of any Confidential Information which: (i) at the time of disclosure is in the public domain through no act or fault of the Receiving Party or its Representatives; or (ii) at the time of disclosure is already in the possession of the Receiving Party or its Representatives and such prior possession can be demonstrated by the Receiving Party or its Representatives; or (iii) is made available to the Receiving Party or its Representatives by an independent third party that to the knowledge of the Receiving Party was not legally or contractually prohibited from making the disclosure to the Receiving Party; or (iv) was independently developed by Receiving Party without reference to or use of any Confidential Information; or (v) is approved for disclosure pursuant to prior written authorization from the Disclosing Party; or (vi) is required by law to be disclosed. Prior to any disclosure required by law, the Receiving Party will promptly notify the Disclosing Party so that the Disclosing Party may seek a protective order or other appropriate remedy, provided such notice is not prohibited by law, rule or regulation. The Receiving Party shall bear the burden of demonstrating the applicability of any of the exceptions set forth in this Section.

6. Ownership of Confidential Information: The Receiving Party agrees that the disclosure of any Confidential Information by the Disclosing Party shall not be construed to convey any rights of ownership or use in such information or in any patent, copyright, trade secret, trademark and other intellectual property rights therein. No license or conveyance of any such rights to the Receiving Party is granted or implied under this Agreement.

7. Accuracy and Completeness of Information: Each party warrants that it has the right to disclose the information actually disclosed under this Agreement without obligation to any third party. The Confidential Information has not been audited or confirmed and, unless specifically provided in writing, the Disclosing Party makes no representations or warranties, express or implied, regarding the accuracy, completeness or performance of the Confidential Information.

8. Specific Performance: With respect to the covenants and agreements of the Receiving Party set forth herein, the parties agree that a violation of such covenants and agreements will cause irreparable injury to the Disclosing Party for which the Disclosing Party will not have an adequate remedy at law, and that the Disclosing Party shall be entitled, in addition to any other rights and remedies it may have, at law or in equity, to obtain an injunction, without the necessity of posting a bond, to restrain the Receiving Party and its Representatives from violating, or continuing to violate, such covenants and agreements.

9. Term and Termination: This Agreement shall be valid for a period of one (1) year, unless extended by written mutual agreement, but it may be terminated earlier by either party giving thirty (30) days notice in writing to the other party of its intention to terminate. Termination shall not, however, affect the rights and obligations contained herein with respect to Confidential Information received prior to termination; such rights and obligations with respect to such Confidential Information shall survive termination of this Agreement for a period of three (3) years from the date of termination.

10. Survival: The terms of this Agreement shall apply to all Confidential Information provided to the Receiving Party and its Representatives and the Receiving Party's obligations under this Agreement shall be continuing and shall survive the termination of the Approved Purpose.

11. Assignment: This Agreement will be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns. Notwithstanding the

foregoing, neither party shall assign, nor in any manner transfer, any information received hereunder or its interests in this Agreement or any part hereof, without first obtaining the prior written approval of the other party.

12. Limitation of Liability: Notwithstanding anything in this Agreement to the contrary, in no event shall either party, their affiliates or any of their trustees, directors, officers, employees, agents or subcontractors be liable for exemplary, punitive, special, incidental, indirect or consequential damages (including, without limitation, attorneys' fees), loss of business, or lost profits, each of which is hereby excluded by agreement of the parties regardless of whether such damages were foreseeable or whether a party or any entity has been advised of the possibility of such damages.

13.No Waiver: It is understood and agreed that no failure or delay by either party hereto in exercising any right, power or privilege hereunder shall operate as a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise thereof, or the exercise of any other right, power or privilege hereunder.

14.Execution in Counterparts: This Agreement may be executed in two or more counterparts, each of which shall be deemed to be an original, but all of which shall constitute the same agreement.

15.Governing Law: This Agreement shall be governed by, construed, applied and enforced in accordance with laws of India, without giving effect to its conflict of laws principles.

16. Headings: The headings of the sections of this Agreement are for convenience only, and shall not control or affect the meaning or construction, or limit the scope or intent, of any of the provisions of this Agreement.

17. No Modification: No provision of this Agreement may be modified or waived unless such modification or waiver is agreed to in writing and signed by the parties hereto.

18. Severability: The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of any other provision of this Agreement, which shall remain in full force and effect.

19.Entire Agreement: This Agreement constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof, and supersedes and replaces all prior agreements, understandings and commitments of the parties with respect to such subject matter.

IN WITNESS WHEREOF, the parties acknowledge that each has fully read and understood this agreement, and intended to be legally bound thereby, executed this Agreement effective as of the date first written above.

Signatures:

“First party”

“Second Party”

ITIO INNOVEX PVT. LTD.

Signature:

Signature:

Signatory: JYOTI VERMA

Signatory:

